

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
AARON GRISSOM and SIDNEY WILLIAMS,

Plaintiffs,

- against -

THE CITY OF NEW YORK, ADAM MUNIZ, and
SGT. FRAZIER,

Defendants.
-----X

Index No.

Plaintiffs designate
New York County as
place of trial.

The basis of the
venue is the
location of
occurrence.

S U M M O N S

Plaintiffs reside at:

AARON GRISSOM
681 Clarkson Avenue
Brooklyn, NY 10031

County of Kings

SIDNEY WILLIAMS
629 Chauncey Street
Brooklyn, NY 11207

County of Kings

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
June 7, 2017

SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiffs
AARON GRISSOM & SIDNEY WILLIAMS
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

The City of New York, 100 Church Street, New York, N.Y. 10007
Adam Muniz, c/o: 25th Precinct, New York, New York
Sgt. Frazier, c/o: 25th Precinct, New York, New York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
AARON GRISSOM and SIDNEY WILLIAMS,

Index No.

Plaintiffs,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, ADAM MUNIZ, and
SGT. FRAZIER,

Defendants.

-----X
Plaintiffs, complaining of the defendants, by their
attorneys, SCHMELKIN ASSOCIATES, P.C., hereby sets forth and
alleges, upon information and belief, as follows:

PRELIMINARY STATEMENT ON BEHALF
OF PLAINTIFF AARON GRISSOM

1. That, on March 17, 2016, the plaintiff, **AARON GRISSOM**, was a resident of the County of Bronx, City and State of New York.

2. That, at all times hereinafter mentioned, and on March 17, 2016 the defendant, **THE CITY OF NEW YORK**, (hereinafter referred to as "**THE CITY**") was and still is a domestic municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

3. That, at all times hereinafter mentioned, and on March 17, 2016 the defendant, **ADAM MUNIZ** (hereinafter referred to as "**MUNIZ**"), was and still is a resident of the City and State of New York.

4. That, at all times hereinafter mentioned, and on

March 17, 2016 the defendant, **SGT. FRAZIER** (hereinafter referred to as "**FRAZIER**"), was and still is a resident of the City and State of New York.

5. That, the plaintiff, **AARON GRISSOM**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim was served on June 2, 2016, within ninety (90) days of the date that the within cause of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **AARON GRISSOM**, testified at an oral examination pursuant to the General Municipal Law on May 9, 2017; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

6. That on March 17, 2016, the plaintiff, **AARON GRISSOM** was in a park in the vicinity of East 125th Street and Park Avenue, in the County of New York, City and State of New York.

7. That on March 17, 2016, the plaintiff, **AARON GRISSOM**, went to a grocery store in the aforementioned vicinity and thereafter to "2 Bros. Pizza", located at 113 East 125th Street in the County of New York, City and State of New York.

8. That the plaintiff, **AARON GRISSOM**, was thereafter tackled, and beaten/assaulted for a long and unreasonable amount of time by the defendant and/or defendants, their agents, servants and/or employees, when he simply asked about the whereabouts of his

friend, the co-plaintiff, SIDNEY WILLIAMS, herein.

9. That the plaintiff, AARON GRISSOM, was never advised of any criminal charges against him.

10. That the plaintiff, AARON GRISSOM, was taken to the Metropolitan Hospital, by the defendants, their agents, servants and/or employees, for the injuries which he sustained, due to the conduct and actions of the aforementioned defendants, and/or their agents, servants, and/or employees.

11. Thereafter the plaintiff, AARON GRISSOM, was taken to the 25th Precinct, where he was placed in a cell and held against his will by aforementioned defendants, their agents, servants and/or employees.

12. That the plaintiff, AARON GRISSOM, was thereafter taken by the defendants, thir agents, servants and/or employees to Central Booking, in the County of New York, City and State if New York.

13. That the plaintiff, AARON GRISSOM, was thereafter caused to appear in criminal court.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, AARON GRISSOM

14. That, the plaintiff, AARON GRISSOM, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 13 with the same force and effect as if hereinafter more fully set forth at length herein.

15. That, on March 17, 2016 the plaintiff, **AARON GRISSOM** was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

16. That, the plaintiff, **AARON GRISSOM**, was assaulted/battered without justification and without cause and without excuse.

17. That, the assault/battery took place in front of and in the vicinity of premises known as 113 East 125th Street, in the County of New York, City and State of New York, and other locations wherein the plaintiff, **AARON GRISSOM** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

18. That, at all times hereinafter mentioned and on March 17, 2016 and for sometime prior thereto, defendant, **MUNIZ**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

19. That, at all times hereinafter mentioned and on March 17, 2016, and for sometime prior thereto, defendant, **FRAZIER**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

20. That, the aforementioned assault and battery of the

plaintiff, AARON GRISSOM, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant THE CITY.

21. That, by reason of the foregoing, the plaintiff, AARON GRISSOM, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

22. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

23. That, by reason of the foregoing, the plaintiff, AARON GRISSOM, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, AARON GRISSOM

24. That, the plaintiff, AARON GRISSOM, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 23 with the same force and effect as if hereinafter more fully set forth at length herein.

25. That, all of the aforementioned acts, committed by police officers and/or defendants, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

26. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

27. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **MUNIZ**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or employees of the defendant, **THE CITY**.

28. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **FRAZIER**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

29. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **MUNIZ**, who was employed by the defendant, **THE CITY**.

30. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **FRAZIER**, who was employed by the defendant, **THE CITY**.

31. That, by reason of the foregoing, the plaintiff, **AARON GRISSOM**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

32. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

33. That, by reason of the foregoing, the plaintiff, **AARON GRISSOM**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, AARON GRISSOM

34. The plaintiff, **AARON GRISSOM**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 33, with the same force and effect as if hereinafter more

fully set forth at length herein.

35. That the plaintiff, **AARON GRISSOM**, did not commit any illegal act, nor did the individually named defendants have reason to believe he committed an unlawful act, either before or at the time he was assaulted and battered, excessive force was used against him; he was deprived of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

36. That at all times hereinafter mentioned, the defendant, **MUNIZ**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

37. That at all times hereinafter mentioned, the defendant, **FRAZIER**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

38. Defendants, **MUNIZ**, and **FRAZIER**, are being sued in their personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendants knew or should have known of the fact that this pattern of conduct

was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

39. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **AARON GRISSOM**, of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York: The right of plaintiff, **AARON GRISSOM** to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **AARON GRISSOM**, to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **AARON GRISSOM**, not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

40. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendant while acting under color of state law and within the scope of his employ.

41. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY**.

42. That the detaining of plaintiff, **AARON GRISSOM** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

43. That the deprivation of plaintiff, **AARON GRISSOM's** Constitutional Rights was a result of the defendant, **THE CITY's** custom and policy in failing to discipline officers for the use of excessive force.

44. That the deprivation of plaintiff, **AARON GRISSOM's** Constitutional Rights was the result of defendant, **MUNIZ's** and/or other agents, servants and/or employees of the defendants use of excessive force.

45. That the deprivation of plaintiff, **AARON GRISSOM's** Constitutional Rights was the result of defendant, **FRAZIER's** and/or other agents, servants and/or employees of the defendants use of excessive force.

46. That the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the Constitutional rights of plaintiff, **AARON GRISSOM**.

47. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the assault and battery, on the plaintiff, **AARON GRISSOM**, as well as the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff, **AARON**

GRISSOM was caused to have his civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

48. That, by reason of the foregoing, the plaintiff, AARON GRISSOM was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief, his injuries are permanent in nature and effect.

49. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

50. That, by reason of the foregoing, the plaintiff, AARON GRISSOM, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

PRELIMINARY STATEMENT ON BEHALF
OF PLAINTIFF SIDNEY WILLIAMS

51. That, the plaintiff, SIDNEY WILLIAMS , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 50 with the same force and effect as if hereinafter more fully set forth at length herein.

52. That, and on March 17, 2016, the plaintiff, SIDNEY

WILLIAMS, was and still is a resident of the County of Bronx, City and State of New York.

53. That, at all times hereinafter mentioned, and on March 17, 2016 the defendant, **THE CITY OF NEW YORK**, (hereinafter referred to as "**THE CITY**") was and still is a domestic municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

54. That, at all times hereinafter mentioned, and on March 17, 2016 the defendant, **MUNIZ**, was and still is a resident of the City and State of New York.

55. That, at all times hereinafter mentioned, and on March 17, 2016 the defendant, **FRAZIER**, was and still is a resident of the City and State of New York.

56. That, the plaintiff, **SIDNEY WILLIAMS**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim was served on June 2, 2016, within ninety (90) days of the date that the within cause of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **SIDNEY WILLIAMS**, testified at an oral examination pursuant to the General Municipal Law on May 9, 2017; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

57. That, on March 17, 2016 the plaintiff, **SIDNEY**

WILLIAMS was present in the establishment known as "2 Bros. Pizza", located at 113 East 125th Street, in the County of New York, City and State of New York.

58. That the plaintiff, **SIDNEY WILLIAMS**, had ordered food while he was at the aforementioned establishment, when he was approached by the defendants, their agents, servants, and/or employees herein.

59. That the aforementioned agents, servants, and/or employees had ordered the plaintiff, **SIDNEY WILLIAMS**, to leave the aforementioned premises and thereafter placed the plaintiff, **SIDNEY WILLIAMS**, against a wall outside the aforementioned premises, and started to strike, beat and injure the plaintiff, **SIDNEY WILLIAMS**, for no reason whatsoever.

60. That the plaintiff, **SIDNEY WILLIAMS**, was thereafter taken to the 25th Precinct, where he was held against his will for a long and unreasonable time, by the defendants, their agents, servants, and/or employees.

61. That the plaintiff, **SIDNEY WILLIAMS**, was placed in a cell at the aforementioned 25th Precinct, by the defendants, their agents, and/or employees.

62. That the plaintiff, **SIDNEY WILLIAMS**, was never told about any charges placed against him.

63. That the plaintiff, **SIDNEY WILLIAMS**, was thereafter released from custody, by the defendants, their agents, servants and/or employees, when the New York County District Attorney refused

to prosecute any criminal charges against plaintiff, **SIDNEY WILLIAMS**, herein.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, **SIDNEY WILLIAMS**

64. That, the plaintiff, **SIDNEY WILLIAMS** , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 63 with the same force and effect as if hereinafter more fully set forth at length herein.

65. That, on March 17, 2016 the plaintiff, **SIDNEY WILLIAMS**, was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

66. That, the plaintiff, **SIDNEY WILLIAMS** , was assaulted/battered without justification and without cause and without excuse.

67. That, the assault/battery took place in front of and in the vicinity of premises known as 113 East 125th Street, in the County of New York, City and State of New York, and other locations wherein the plaintiff, **SIDNEY WILLIAMS**, was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

68. That, at all times hereinafter mentioned and on March 17, 2016 and for sometime prior thereto, defendant, **MUNIZ**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

69. That, at all times hereinafter mentioned and on March 17, 2016, and for sometime prior thereto, defendant, **FRAZIER**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

70. That, the aforementioned assault and battery of the plaintiff, **SIDNEY WILLIAMS**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant **THE CITY**.

71. That, by reason of the foregoing, the plaintiff, **SIDNEY WILLIAMS**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

72. That, by reason of the foregoing, the plaintiff, **SIDNEY WILLIAMS**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, SIDNEY WILLIAMS

73. That, the plaintiff, **SIDNEY WILLIAMS**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 72 with the same force and effect as if

hereinafter more fully set forth at length herein.

74. That, all of the aforementioned acts, committed by police officers and/or defendants, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

75. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

76. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **MUNIZ**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or employees of the defendant, **THE CITY**.

77. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **FRAZIER**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

78. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited

to defendant, **MUNIZ**, who was employed by the defendant, **THE CITY**.

79. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **FRAZIER**, who was employed by the defendant, **THE CITY**.

80. That, by reason of the foregoing, the plaintiff, **SIDNEY WILLIAMS**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

81. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

82. That, by reason of the foregoing, the plaintiff, **SIDNEY WILLIAMS**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, SIDNEY WILLIAMS

83. That the plaintiff, **SIDNEY WILLIAMS**, repeats,

reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 82 with the same force and effect as if hereinafter more fully set forth at length herein.

84. That, on March 17, 2016, the plaintiff, **SIDNEY WILLIAMS**, was caused to be falsely arrested and falsely imprisoned without probable cause.

85. That, the plaintiff, **SIDNEY WILLIAMS**, was arrested without an arrest warrant.

86. That, the false arrest/false imprisonment took place in front of and in the vicinity of premises known as 113 East 125th Street, in the County of New York, City and State of New York, and other locations wherein the plaintiff, **SIDNEY WILLIAMS**, was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

87. That, the aforementioned false arrest and false imprisonment of the plaintiff, **SIDNEY WILLIAMS**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

88. That, the aforementioned false arrest and false imprisonment of the plaintiff, **SIDNEY WILLIAMS**, was carried out by defendant, **MUNIZ**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant, **THE CITY**.

89. That, the aforementioned false arrest and false

imprisonment of the plaintiff, **SIDNEY WILLIAMS**, was carried out by defendant, **FRAZIER**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

90. That, by reason of the foregoing, the plaintiff, **SIDNEY WILLIAMS**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

91. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

92. That, by reason of the foregoing, the plaintiff, **SIDNEY WILLIAMS**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, SIDNEY WILLIAMS

93. The plaintiff, **SIDNEY WILLIAMS**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 92, with the same force and effect as if hereinafter more

fully set forth at length herein.

94. That the plaintiff, **SIDNEY WILLIAMS**, did not commit any illegal act, nor did the individually named defendants have reason to believe she committed an unlawful act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, excessive force was used against him; maliciously prosecuted and deprived of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

95. That at all times hereinafter mentioned, the defendant, **MUNIZ**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

96. That at all times hereinafter mentioned, the defendant, **FRAZIER**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

97. Defendants, **MUNIZ**, and **FRAZIER**, are being sued in their personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendants

knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

98. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **SIDNEY WILLIAMS**, of the following rights, privileges and immunities secured to her by the Constitution of the United States and of the State of New York: The right of plaintiff, **SIDNEY WILLIAMS** to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **SIDNEY WILLIAMS**, to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **SIDNEY WILLIAMS**, not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

99. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendants while acting under color of state law and within the scope of their employ.

100. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting individuals without probable cause.

101. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting minorities without probable cause.

102. That the deprivation of plaintiff, **SIDNEY WILLIAMS** Constitutional Rights was the result of the defendant, **THE CITY's** custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

103. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY**.

104. That the detaining of plaintiff, **SIDNEY WILLIAMS** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

105. That the deprivation of plaintiff, **SIDNEY WILLIAMS** Constitutional Rights was the result of the defendant, **MUNIZ'S** arrest of the plaintiff, **SIDNEY WILLIAMS**, without probable cause.

106. That the deprivation of plaintiff, **SIDNEY WILLIAMS'S** Constitutional Rights was the result of the defendant, **FRAZIER'S** arrest of the plaintiff, **SIDNEY WILLIAMS**, without probable cause.

107. That the deprivation of plaintiff, **SIDNEY WILLIAMS'S** Constitutional Rights was a result of the defendant, **THE CITY's**

custom and policy in failing to discipline officers for the use of excessive force.

108. That the deprivation of plaintiff, **SIDNEY WILLIAMS's** Constitutional Rights was the result of **MUNIZ's** use of excessive force.

109. That the deprivation of plaintiff, **SIDNEY WILLIAMS's** Constitutional Rights was the result of **FRAZIER's** use of excessive force.

110. That the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the Constitutional rights of plaintiff, **SIDNEY WILLIAMS** .

111. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, as well as the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff, **SIDNEY WILLIAMS** was caused to have his civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

112. That, by reason of the foregoing, the plaintiff, **SIDNEY WILLIAMS** was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and

advice; was unable to pursue his usual and regular activities; and upon information and belief, his injuries are permanent in nature and effect.

113. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

114. That, by reason of the foregoing, the plaintiff, **SIDNEY WILLIAMS**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, plaintiff, **AARON GRISSOM**, demands judgment against the defendants, on the First, Second, and Third causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York; and plaintiff, **SIDNEY WILLIAMS** demands judgment against the defendants, on the Fourth, Fifth, Sixth, and Seventh causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York together with interest, as well as the costs, disbursements and legal fees pursuant to 42 U.S.C. Section 1988, of these causes of action.

Dated: New York, New York
June , 2017

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Yours, etc.

SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiffs,
AARON GRISSOM AND SIDNEY WILLIAMS
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

ATTORNEYS VERIFICATION

JOEL SCHMELKIN, an attorney admitted to practice law in the State of New York, affirms the following under the penalties of perjury:

I am a member of the law firm of Schmelkin Associates, P.C., the attorneys of record for the plaintiff in the within action; I have read the foregoing **COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe it to be true. This verification is made by me and not by the plaintiff for the reason that plaintiff does not reside within the County where Schmelkin Associates, P.C. maintains its office.

The grounds of my belief as to all matters not stated upon my knowledge are conversations with plaintiff and contents of the file maintained by Schmelkin Associates, P.C..

Dated: New York, New York

June 7, 2017



JOEL SCHMELKIN

Index No.

Year 20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

AARON GRISSOM and SIDNEY WILLIAMS,

Plaintiffs,

-against-

THE CITY OF NEW YORK, ADAM MUNIZ, and
SQT. FRAZIER,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

Aaron Grissom and Sidney Williams

Office and Post Office Address, Telephone

30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated: June 7, 2017

Signature

Print Signer's Name

JOEL SCHMELKIN

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

NOTICE OF
ENTRYthat the within is a (certified) true copy of a
entered in the office of the clerk of the within-named Court on

20

NOTICE OF
SETTLEMENT

that an Order of which the within is a true copy will be presented for settlement to the
Hon. , one of the judges of the within-named Court,
at
on 20 , at M.

Dated:

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

To:

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Office and Post Office Address, Telephone